

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 42-006
Amendments to Title 5 of the Chickasaw Nation Code
(Rules of Evidence)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations on rules of evidence and wishes to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 5, Chapter 13, Article H, Section 5-1308.3 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 5-1308.3

**HEARSAY EXCEPTIONS; AVAILABILITY OF
DECLARANT IMMATERIAL.**

A. The following are not excluded by the Hearsay rule, even though the Declarant is available as a witness:

1. Present sense impression. A Statement describing or explaining an event or condition made while the Declarant was perceiving the event or condition or immediately thereafter.

2. Excited utterance. A Statement relating to a startling event or condition made while the Declarant was under the stress of excitement caused by the event or condition.

3. Then existing mental, emotional, or physical condition. A Statement of the Declarant's then existing state of mind, emotion, sensation, or physical condition (such as intent, plan, motive, design, mental feeling, pain, and bodily health), but not including a statement of memory or belief to prove the fact remembered or believed unless it relates to the execution, revocation, identification, or terms of Declarant's will.

4. Statements for purposes of medical diagnosis or treatment. Statements made for purposes of medical diagnosis or treatment and describing medical history, or past or present symptoms, pain, or sensations, or the inception or general character of the cause or external source thereof insofar as reasonably pertinent to diagnosis or treatment.

5. Recorded recollection. A memorandum or record concerning a matter about which a witness once had knowledge but now has insufficient recollection to enable him to testify fully and accurately, shown to have been made or adopted by the witness when the matter was fresh in his memory and to reflect that knowledge correctly. If admitted, the memorandum or record may be read into evidence but may not itself be received as an exhibit unless offered by an adverse party.

6. Records of regularly conducted activity. A memorandum, report, record, or data compilation, in any form, concerning acts, events, conditions, opinions, or diagnoses, made at or near the time by, or from information transmitted by, a person with knowledge, if kept in the course of a regularly conducted Business activity, and if it was the regular practice of that Business activity to make the memorandum, report, record, or data compilation, all as shown by the testimony of the custodian or other qualified witness, unless the source of information or the method or circumstances of preparation indicate lack of trustworthiness. The term "Business" as used in this paragraph includes Business, institution, association, profession, occupation, and calling of every kind, whether or not conducted for profit.

7. Absence of entry in records kept in accordance with the provisions of Paragraph 6 above. Evidence that a matter is not included in the memoranda reports, records, or data compilations, in any form, kept in accordance with the provisions of Paragraph 6 above, to prove the non-occurrence or nonexistence of the matter, if the matter was of a kind of which a memorandum, report, record, or data compilation was regularly made and preserved, unless the sources of information or other circumstances indicate lack of trustworthiness.

8. Public records and reports. Records, reports, Statements, or data compilations, in any form, of public offices or agencies, setting forth:

- a. the activities of the office or agency;
- b. matters observed pursuant to duty imposed by law as to which matters there was a duty to report, excluding in criminal cases, however, matters observed by police officers and other law enforcement personnel; or
- c. in civil actions and proceedings and against the government in criminal cases, factual findings resulting from an investigation made pursuant to authority granted by law, unless the sources of information or other circumstances indicate lack of trustworthiness.

9. Records of vital statistics. Records or data compilations, in any form, of birth, fetal deaths, deaths, or marriages, if the report thereof was made to a public office pursuant to requirements of law.

10. Absence of public record or entry. To prove the absence of a record, report, Statement, or data compilation, in any form, was regularly made and preserved by a public office or agency, evidence in the form of a certification in accordance with Section 5-1309.2, or testimony, that diligent search failed to disclose the record, report, Statement, or data compilation, or entry.

11. Records of religious organizations. Statements of births, marriages, divorces, deaths, legitimacy, ancestry, relationship by blood, marriage, or other similar acts of personal or family history, contained in a regularly kept record of a religious organization.

12. Marriage, baptismal, and similar certificates. Statements contained in a certificate that the maker performed a marriage or other ceremony or administered a sacrament, made by a clergyman, public official, or other person authorized by the rules or practices of a religious organization or by law to perform the act certified, and purporting to have been issued at the time of the act or within a reasonable time thereafter.

13. Family records. Statements of fact concerning personal or family history contained in family Bibles, genealogies, charts, engravings on rings, inscriptions on family portraits, engravings on urns, crypts, or tombstones, or the like.

14. Records of documents affecting an interest in property. The record of a document purporting to establish or affect an interest in property, as proof of the content of the original recorded document and its execution and delivery by each person by whom it purports to have been executed, if the record is a record of a public office and an applicable statute authorizes the recording of documents of that kind in that office.

15. Statements in documents affecting an interest in property. A Statement contained in a document purporting to establish or affect an interest in property if the matter stated was relevant to the purpose of the document, unless dealings with the property since the document was made have been inconsistent with the truth of the statement or the purport of the document.

16. Statements in ancient documents. Statements in a document in existence twenty (20) years or more the authenticity of which is established.

17. Market reports, commercial publications. Market quotations, tabulations, lists, directories, or other published compilations, generally used and relied upon by the public or by persons in particular occupations.

18. Learned treatises. To the extent called to the attention of an expert witness upon cross-examination, or relied upon by him in direct examination, Statements contained in published treatises, periodicals, or pamphlets on a subject of history, medicine, or other science or, established as a reliable authority by the testimony or admission of the witness or by other expert witness or by judicial notice. If admitted, the Statements may be read into evidence but may not be received as exhibits.

19. Reputation concerning personal or family history. Reputation among members of his family by blood, adoption, or marriage, or among his associates, or in the community, concerning a person's birth, adoption, marriage, divorce, death, legitimacy, relationship by blood, adoption, or marriage, ancestry, or other similar fact of his personal or family history.

20. Reputation concerning boundaries or general history. Reputation in a community, arising before the controversy, as to boundaries of or customs affecting lands in the community, and reputation as to events of general history important to the Chickasaw or community or state or nation in which located.

21. Reputation as to character. Reputation of a person's character among his associates or in the community.

22. Judgment of previous conviction. Evidence of a final judgment, entered after a trial or upon a plea of guilty (but not upon a plea of *nolo contendere*), adjudging a person guilty of a crime or offense, to prove any fact essential to sustain the judgment in the criminal case as against persons in any civil case, but not against the accused in a criminal case. The pendency of an appeal may be shown but does not affect admissibility.

23. Other exceptions. A Statement not specifically covered by any of the foregoing exceptions but having equivalent circumstantial guarantees of trustworthiness, if the Court determines that:

- a. the Statement is offered as evidence of a material fact;
- b. the Statement is more probative on the point for which it is offered than any other evidence which the proponent can procure through reasonable efforts; and
- c. the general purposes of this Chapter and the interests of justice will best be served by admission of the Statement into evidence.

24. Tribal citizenship verification. A written statement from a federally recognized tribe signed by an authorized tribal official verifying citizenship of a person in that federally recognized tribe.

B. A proponent of the admission of a statement pursuant to this Section must make it known to the adverse party in writing, sufficiently in advance of the trial or hearing to provide

the adverse party with a fair opportunity to prepare to meet it, of his intention to offer the Statement and the particulars of it, including the name and address of the Declarant.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 5, Chapter 13, Article I, Section 5-1309.2 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 5-1309.2

SELF-AUTHENTICATION.

Extrinsic evidence of authenticity as a condition precedent to admissibility is not required with respect to the following:

1. Domestic public documents under seal. A document bearing a seal purporting to be that of the United States, or of any Indian Tribe, state, district, commonwealth, territory, or insular possession thereof, or the Trust Territory of the Pacific Islands, or of a political subdivision, department, officer, or agency thereof, and a signature purporting to be an attestation or execution.
2. Domestic public documents not under seal. A document purporting to bear the signature in his official capacity of an officer or employee of any entity included in Paragraph 1 hereof, having no seal, if a public officer having a seal and having official duties in the district or political subdivision of the officer or employee certifies under seal that the signer has the official capacity and that the signature is genuine.
3. Foreign public documents. A document purporting to be executed or attested in his official capacity by a person authorized by the laws of a foreign country to make the execution or attestation, and accompanied by a final certification as to the genuineness of the signature and official position:
 - a. of the executing or attesting person; or
 - b. of any foreign official whose certificate of genuineness of signature and official position related to the execution or attestation or is a chain of certificates of genuineness of signature and official position relating to the execution or attestation.

A final certification may be made by a secretary of embassy or legation, consul, general consul, vice consul, or consular agent of the United States, or a diplomatic or consular official or the foreign country assigned or accredited to the United States. If reasonable opportunity has been given to all parties to investigate the authenticity and accuracy of official documents, the Court may, for good cause shown, order that they be treated as presumptively authentic without final certification or permit them to be evidenced by an attested summary with or without final certification.

4. Certified copies of public records. A copy of an official record or report or entry therein, or of a document authorized by law to be recorded or filed and actually recorded or filed in a public office, including data compilations in any form, certified as correct by the custodian or other person authorized to make the certification, by certificate complying with Paragraph 1, 2 or 3 of this Section or complying with any act of the Chickasaw Legislature or rule prescribed by the courts of the Chickasaw Nation pursuant to statutory authority.

5. Official publications. Books, pamphlets, or other publications purporting to be issued by public authority.

6. Newspapers and periodicals. Printed materials purporting to be newspapers or periodicals.

7. Trade inscriptions and the like. Inscriptions, signs, tags, or labels purporting to have been affixed in the course of business and indicating ownership, control or origin.

8. Acknowledged documents. Documents accompanied by a certificate of acknowledgment executed in the manner provided by law by a notary public or other officer authorized by law to take acknowledgments or administer oaths.

9. Commercial paper and related documents. Commercial paper, signatures thereon, and documents relating thereto to the extent provided by general commercial law.

10. Presumptions under Acts or Ordinances. Any signature, document, or other matter declared by Act or Ordinance of the Chickasaw Legislature to be presumptively or prima facie genuine or authentic.

11. Tribal citizenship verification document. A written statement from a federally recognized tribe signed by an authorized tribal official verifying citizenship of a person in that federally recognized tribe.

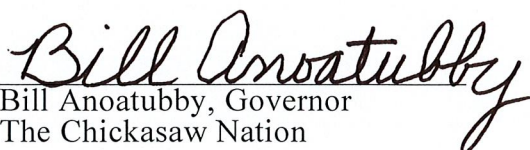
Executed in regular session of the Chickasaw Tribal Legislature Meeting, at Ada, Oklahoma on May 16, 2025, by a vote of 12 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 16 2025

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-006
Amendments to Title 5 of the Chickasaw Nation Code
(Rules of Evidence)

Explanation:

This resolution amends the Chickasaw Nation Code to facilitate admissibility of tribal citizenship evidence.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature